Last Ping

Terms of Service & Privacy Policy

DRAFT TEMPLATES. NOT LEGAL ADVICE.
For review by Murray Nguyen. Have a California-licensed attorney review before monetizing.

Last Ping: Terms of Service

> **DRAFT TEMPLATE. NOT LEGAL ADVICE.** This document is a starting template for Murray Nguyen to review. It is not legal advice, and no attorney has reviewed it. Have a lawyer licensed in California review and adapt it **before you monetize Last Ping** (cosmetics, payments, ads, sponsorships) or materially change how the game works. Items in `[BRACKETS]` are placeholders to fill in.

Effective date: [DATE] · **Last updated:** [DATE]

The short version (plain English)

This summary is here to make the Terms easier to read. It is not a substitute for them. The full Terms below are what count.

- **You must be 18 or older to play.** You'll be meeting people in person, possibly strangers, in public places.
- **Last Ping is a real-world physical game, and you play at your own risk.** Watch for traffic. Stay off private property. Obey the law. Play only in public places where you're allowed to be. Don't use your home as a hiding spot or meeting point.
- **Be decent.** No harassment, stalking, cheating with other people's data, or using the game to find or follow someone who isn't playing.
- **Recording is your responsibility.** If you film other people, get their consent and follow local recording laws. In California, recording someone's private conversation (including audio) generally requires everyone's consent.
- **The game is free and provided "as is."** It may break, lose your game, or show inaccurate locations. GPS is approximate.
- **Our liability is limited** to the extent the law allows.
- **These Terms may change.** If you keep playing after an update, you accept the new Terms.
- **California law governs these Terms.** Questions: [CONTACT EMAIL].

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1. Who we are and what these Terms cover

"Last Ping" (the "**Game**" or "**Service**") is a free, browser-based, GPS-powered hide-and-seek game. It is created and operated by Murray Nguyen, an individual based in California, United States ("**we**," "**us**," or "**our**"). These Terms of Service ("**Terms**") are an agreement between you and us. They cover your use of the Game website, the lobbies, the in-game features, the recap and highlight features, and any related links we provide.

By opening a lobby, joining a lobby, or otherwise using the Game, you agree to these Terms and to our Privacy Policy. If you do not agree, do not use the Game.

2. Eligibility: 18 and over only

You must be **at least 18 years old** to use the Game. By using it, you confirm that you are 18 or older and legally able to agree to these Terms.

Why 18+? We considered allowing 13 to 17 year olds with a parent's or guardian's permission. We chose 18+ instead for three reasons:

- The Game makes players move around in public and shares their real-time location with other players.
- Lobbies are joined by code, so you may end up playing in person with people you don't know.
- We have no account system and no way to verify ages or parental consent, and we cannot supervise games.

Those risks are better handled by adults who can judge them for themselves.

If we learn that someone under 18 is using the Game, we may remove them from a lobby. See also the "Children" section of our Privacy Policy.

3. How the Game works

- **Lobbies.** A host creates a lobby and shares a code, link, or QR code. Players join with a display name and, optionally, an Instagram handle. Anyone with the code or link can join. Share it only with people you intend to play with.
- **Location sharing.** During a game your device sends your live GPS location to our server. Depending on your role, other players see some of your location. For example, hunters receive hiders' locations at each "ping," which happens about every 60 seconds by default, plus at certain power-up events. Your display name, Instagram handle (if provided), role, and in-game status are visible to the other players in your lobby.
- **Recaps.** At the end of a round, players in the lobby can see a recap that may include each player's location trail on a map.
- **Optional features.** You may optionally consent to a one-time camera snapshot (the "hider cam sneak peek"), record video on your own device, and send short highlight clips to the host. Our Privacy Policy explains how these work.
- **No accounts, no saved games.** Games live only in server memory. A game may be lost at any time, for example when the server restarts, sleeps, or a lobby closes.

4. Safety rules and assumption of risk

Last Ping involves physical activity in the real world. Your safety is your responsibility. By playing, you agree to follow these rules:

1. **Watch where you're going.** Stay alert to traffic, cyclists, other pedestrians, uneven ground, water, and other hazards. **Never** look at your phone while crossing a street, and

never play while driving, cycling, or operating any vehicle or equipment.
2. **Play only in public places where you are allowed to be,** such as public parks or open public spaces, during hours when they are open. Choose a play area that is safe for everyone in your group.
3. **No trespassing.** Do not enter private property, closed areas, construction sites, rooftops, railways, restricted government or school property, or any place you don't have permission to be. A hiding spot is never worth it.
4. **Follow all laws** and posted rules, as well as the instructions of police, security, park staff, and property owners.
5. **Don't share your home location.** Do not start, host, end, or hide at your home or anywhere you don't want other players to learn about. Turn the game off, or leave the lobby, before you go home. While a game is running, your location is shared with other players.
6. **Meet strangers safely.** If you play with people you don't know, play in busy, well-lit public places, tell someone you trust where you'll be, and leave if you feel unsafe.
7. **Respect bystanders.** Don't alarm, obstruct, or hide among members of the public in a way that frightens them. Don't run through crowds, businesses, or private events.
8. **Know your limits.** Play only if you are physically able to. Stay hydrated, dress for the weather, and stop if you feel unwell. Consider avoiding play after dark.
9. **Don't rely on the Game for safety or navigation.** GPS location, boundaries ("playing field"), out-of-bounds warnings, and compass directions are approximate and can be wrong, delayed, or unavailable. They are not safety features.

Assumption of risk. You understand that playing involves inherent risks, including risks from traffic, terrain, weather, other players, and members of the public. These risks can lead to property damage, injury, or, in extreme cases, death. **To the fullest extent permitted by law, you voluntarily assume all of those risks.** You are solely responsible for your own conduct and safety. If you host a game, you are responsible for choosing a reasonable and lawful play area.

5. User conduct

You agree **not** to:

- Use the Game to stalk, track, harass, threaten, intimidate, or harm anyone. This includes tracking a person who has not knowingly and voluntarily joined a game.
- Share another player's location, photos, clips, or identity outside the game in order to harass or endanger them.
- Pick a display name or Instagram handle that impersonates someone else or that is hateful, sexually explicit, or harassing. Do not enter an Instagram handle that isn't yours.
- Upload, send, or capture content that is illegal, sexually explicit, violent, or hateful, or that invades someone's privacy.
- Play under the influence of alcohol or drugs in a way that puts you or others at risk.

- Spoof GPS, tamper with the Game, abuse bugs, or interfere with other players' games. Do not attack, overload, scrape, or reverse-engineer the Service, try to access lobbies you weren't invited to, or try to get location data you aren't meant to see.
- Use the Game for any commercial purpose without our written permission, or abuse the referral link, for example by using bots or automated visits to inflate counts.
- Break any law, or help or encourage anyone else to do these things.

We may remove anyone from a lobby, block access, or shut down a lobby at any time if we believe these Terms are being broken or someone's safety is at risk.

6. Recording other people

The Game lets you record video and audio on your own device, and it can capture a camera snapshot. **You are solely responsible for anything you record and for how you use or share it.**

- **Get consent.** Before you record other players or bystanders, ask whether they're okay with it. Stop if anyone objects.
- **Follow recording laws.** Recording laws vary by location. **California generally requires the consent of all parties** to record a confidential communication, including audio of a private conversation (California Penal Code § 632). Other states and countries have their own rules. Don't record audio of people's conversations without their consent.
- **Respect privacy.** Don't record in places where people expect privacy, such as restrooms, changing areas, or inside homes. Don't record children without a parent's consent.
- **Sharing.** Before you post a clip publicly, make sure the people in it are okay with that. Don't post clips that reveal someone's home, school, workplace, or other identifying location without their permission.
- **The hider cam sneak peek** takes a photo through the rear camera of a consenting hider and shows it to hunters. Hiders, point your camera responsibly, and don't capture bystanders' faces or private places.

7. Your content

"**Your Content**" means the display name, Instagram handle, photos, and highlight clips you choose to submit to the Game. You keep ownership of Your Content. You give us a limited, worldwide, royalty-free, non-exclusive license to host, store temporarily, transmit, display, and process Your Content, and to show it to the other players in your lobby, but only as needed to run the Game features you use. You confirm that you have the rights and consents needed to submit Your Content. This includes the consent of any people who appear in it.

We do not claim ownership of video you record on your own device. We do not receive that video unless you choose to send highlights.

8. Our content and your license to use the Game

We or our licensors own the Game, including its name, design, code, and graphics. Third-party components, such as map data © OpenStreetMap contributors and open-source libraries, remain under their own licenses. We grant you a personal, revocable, non-transferable, non-exclusive license to use the Game for your own non-commercial entertainment, subject to these Terms.

9. Free service, future paid features, and ads

The Game is currently free. In the future we may offer optional paid items, such as cosmetics, processed by a payment provider like Stripe. We may also show ads, including optional "rewarded" ads, served by third parties such as Google. If we do, additional terms may apply, such as pricing, refund rules, and the terms of those third parties. We will update these Terms and our Privacy Policy before we launch those features. Virtual items would have no cash value and would not be redeemable for money.

10. Third-party links and services

The Game links to or depends on third-party services. These include Instagram profiles, OpenStreetMap map tiles, our hosting provider (Render), and possibly a redirect or landing page in the future. We don't control those services and aren't responsible for them. Your use of them is governed by their own terms and privacy policies.

11. Changes to the Game and these Terms

We may change, suspend, or discontinue all or part of the Game at any time, with or without notice. That includes features, rules, and power-ups. We may also update these Terms from time to time. When we do, we will change the "Last updated" date above. If a change is material, we will try to give reasonable notice, for example a notice on the Game's home screen. If you continue to use the Game after the updated Terms take effect, you accept them. If you don't agree, stop using the Game.

12. Disclaimer of warranties

THE GAME IS PROVIDED "AS IS" AND "AS AVAILABLE," WITHOUT WARRANTIES OF ANY KIND. To the fullest extent permitted by law, we disclaim all warranties, express or implied, including warranties of merchantability, fitness for a particular purpose, title, non-infringement, and accuracy. We do not warrant:

- that the Game will be uninterrupted, secure, error-free, or available at any particular time;
- that location data, boundaries, timers, or other information will be accurate or timely; or
- that games, recaps, photos, or highlights will not be lost.

Free hosting may sleep or restart, and this can end games in progress.

13. Limitation of liability

TO THE FULLEST EXTENT PERMITTED BY LAW:

- **We will not be liable for any indirect, incidental, special, consequential, exemplary, or punitive damages,** or for any loss of data, enjoyment, or goodwill, arising out of or related to the Game or these Terms. This applies even if we have been told such damages are possible.
- **We are not responsible for the conduct of other players or third parties,** whether online or in person.
- **Our total liability** for all claims arising out of or related to the Game or these Terms **will not exceed the greater of (a) the amount you paid us in the 12 months before the claim, or (b) US $50.**

Some jurisdictions do not allow certain warranties or liabilities to be excluded or limited. In those places, these limits apply only to the extent the law allows. Nothing in these Terms limits liability for gross negligence, willful misconduct, fraud, or anything else that cannot legally be limited.

14. Release and indemnity

Release. To the fullest extent permitted by law, you release us from claims arising out of disputes with other players or third parties, or out of your participation in the Game. If you are a California resident, you waive California Civil Code § 1542, which says: *"A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party."*

Indemnity. You agree to defend, indemnify, and hold us harmless from any claims, damages, losses, and expenses, including reasonable attorneys' fees, that arise out of: your use of the Game; your conduct, including trespass, traffic violations, or recording others; Your Content; or your breach of these Terms or the law.

15. Termination

You can stop using the Game at any time. Leaving a lobby, or closing the tab, ends your participation. We may suspend or end your access at any time for any reason, including a breach of these Terms. Sections that by their nature should survive termination will survive. Those include sections 4, 6, 7, and 12 through 17.

16. Governing law and disputes

These Terms are governed by the laws of the **State of California, USA**, without regard to its conflict-of-laws rules. Any dispute arising out of or relating to these Terms or the Game will be brought exclusively in the state or federal courts located in [COUNTY] County, California. You and we both consent to the jurisdiction of those courts. Before you file a claim, you agree to contact us at [CONTACT EMAIL] and try to resolve the dispute informally for at least 30 days. This doesn't affect any rights you have under the laws of the place where you live that cannot be waived.

[Lawyer to consider: whether to add an arbitration clause and class-action waiver, and a small-claims carve-out.]

17. General

- These Terms and the Privacy Policy are the entire agreement between you and us about the Game.
- If any provision is found unenforceable, the rest remain in effect.
- If we fail to enforce a provision, that does not waive it.
- You may not transfer your rights under these Terms. We may transfer ours, for example if the Game is sold or transferred to a business entity.

18. Contact

Murray Nguyen (Last Ping) Email: **[CONTACT EMAIL, e.g. legal@yourdomain.com]**
Instagram: @mmmmmray California, United States

Last Ping: Privacy Policy

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Effective date: [DATE] · **Last updated:** [DATE]

The short version (plain English)

This summary is here to make the policy easier to read. It is not a substitute for it. The full policy below is what counts.

- **No accounts, no database, no tracking cookies.** We run the game in server memory. When a round, lobby, or server ends, that game data is gone.
- **Your location is the core of the game.** During a game your phone sends your GPS location to our server. Hunters see hiders' locations at each "ping," about every 60 seconds by default. Your location trail is kept in memory for the round so we can show the end-of-round recap. Then it is discarded.
- **Other players see what you share:** your display name, your Instagram handle if you add one, your role, your in-game status, and some of your location.
- **The camera snapshot is opt-in.** If you consent in the lobby, hunters see one photo from your rear camera at minute 10. It is kept in memory for that round only.
- **Your video stays on your phone** unless you tap "Send my highlights to host." Then short highlight cuts go to the server and are kept in memory for **30 minutes at most**.
- **We do not sell your personal information,** and we don't share it for targeted advertising.
- **18+ only.** We don't knowingly collect data from children.
- **Questions or requests:** [CONTACT EMAIL].

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1. Who we are

Last Ping (the "**Game**") is a free, browser-based GPS hide-and-seek game. It is created and operated by Murray Nguyen, an individual in California, United States ("**we**," "**us**," or "**our**"). This Privacy Policy explains what information the Game handles, how we use it, who can see it, and how long we keep it. It is part of our Terms of Service.

2. Information we handle

What	When	Who sees it	How long we keep it
Display name	You type it to create or join a lobby	Everyone in your lobby	Server memory until you leave or the lobby closes
Instagram handle (optional)	You add it when joining	Everyone in your lobby (shown as a link to your profile); may appear in recaps and shared links	Same as display name
Lobby code and a random session token	When you join	The token is used only by your browser and our server, to reconnect you	Server memory while the lobby exists; on your device until you leave the lobby
Live GPS location (latitude, longitude, accuracy)	During a game, sent repeatedly (roughly every few seconds while moving, at least every ~15 s)	See section 3	Server memory for the round
Location trail	Built from the location pings during a round	Players in your lobby, in the end-of-round recap	Until **Play again**, the lobby closes, or the server restarts
Camera snapshot (optional; "hider cam sneak peek")	Minute 10, only if you're a hider and tapped "allow camera" in the lobby	Hunters in your lobby only	Server memory for that round only; never written to disk
Highlight cuts (optional)	Only if you tap "Send my highlights to host"	The lobby host (for a group highlight reel)	Server memory for **30 minutes at most**, or less if Play again starts or the lobby closes
Video you record	When you use Record	Only you; it stays on your device	We never receive it (unless you send highlights, as above)
Referral visits	When someone opens a link with `?ref=<handle>`	Us	The count is kept in server memory; each visit is also written to our server logs (handle and page). See section 6
Technical data	Every request	Us, our host, and the map tile provider	See section 6

We **do not** collect your real name, email address, phone number, contacts, or payment information. We do not ask for them, and we have no account system.

Your device. The Game saves a few items in your browser's **localStorage** so you don't have to retype them: your display name, Instagram handle, camera-consent choice, settings, and your current lobby session. Some layout preferences are saved in **sessionStorage**. These items stay on your device. Leaving a lobby removes the lobby session. To remove everything else, clear this site's data in your browser settings. **We do not use cookies.** We use no advertising or analytics trackers.

3. How location sharing works

- **Hiders:** the server receives your live location. **Hunters do not see it live.** They receive a snapshot of your location at each scheduled "ping" (about every 60 seconds by default; the host can change this). Hunters may also get extra or modified pings from game events, such as bounties, the out-of-bounds penalty, or a ghost decoy. In the final "sudden death" phase, hunters see only a compass direction and a rough distance band to the nearest hider, not coordinates.
- **Hunters:** other hunters on your team can see your location live.
- **Everyone:** other players may see whether you are inside or outside the playing field (an in/out flag only). The host's location may be used to center the playing field.
- **Recap:** at the end of a round, players in your lobby can see each hider's ping trail on a map.
- Location sharing stops when the round ends or you leave the lobby or close the page. You can deny location permission in your browser at any time, but then the game won't work for you.

Please don't play from, or end a game at, your home or any other place you want to keep private. See our Terms of Service.

4. How we use information

We use the information above only to:

- run the Game, including lobbies, roles, timers, pings, power-ups, the playing field, catches, recaps, photos, and highlight reels;
- reconnect you if you refresh the page or your screen locks;
- count referral visits, so creators can see how many people their links bring in;
- keep the Game secure, prevent abuse, and fix bugs; and
- comply with the law.

We do not use your location or other data for advertising, profiling, or any purpose unrelated to playing the Game.

5. Who we share information with

- **Other players in your lobby,** as described above. They may take screenshots, or download or share recap images and highlight reels. **Once they do, that copy is outside our control.** Play only with people you trust with this information.
- **Service providers.** These process data on our behalf so the Game can run:
- **Render** (render.com) hosts our server in the United States. It processes the traffic and server logs (see section 6).
- **OpenStreetMap** map tiles are loaded directly by your browser from OpenStreetMap servers. Those servers receive your IP address and the map area being viewed, as with

any website request. See the OpenStreetMap Foundation's privacy policy.
- **Instagram (Meta):** if you tap a player's handle or "Follow," you leave the Game and go to Instagram, where Instagram's policies apply.
- **Legal reasons:** we may disclose information if the law requires it, or to protect someone's safety. Because we keep almost nothing, we usually have nothing to disclose.
- **Business transfer:** if the Game is transferred to a new owner or entity, this policy will continue to apply to any information transferred.

We do not sell your personal information. We do not "share" it for cross-context behavioral advertising (as those terms are defined under California law). We have not done either in the past 12 months.

6. Server logs and technical data

Like most websites, our server and our hosting provider automatically handle technical data, such as your IP address, browser type, the pages you request, and timestamps. Our application writes a small amount of information to the server console, for example referral visits (the referring handle and page) and server events. Our host may keep these logs for a limited period under its own retention settings, [RENDER LOG RETENTION, e.g. 7 days on the free plan; confirm]. We use logs only to operate and debug the Game and prevent abuse.

7. How long we keep information

The Game has **no database**. All game data, including names, handles, locations, trails, photos, and highlights, lives only in server memory. It is deleted:

- **at "Play again"** (trails, catches, photos, recaps, and highlights from the previous round are wiped);
- **when you leave the lobby** (your player entry is removed);
- **when the lobby closes**, that is, when the last player leaves or after about 1 hour with no game running (a running round is capped at 6 hours);
- **when the server restarts or sleeps**, which on our free hosting can happen after a period of inactivity; and
- **for highlight cuts, after 30 minutes at most.**

Referral visit counts are kept in memory until the server restarts. Server logs are kept as described in section 6.

8. Your choices

- Use any display name you like (within our conduct rules), and leave the Instagram field blank if you prefer.
- Tap **"Ready without camera"** to opt out of the camera snapshot.
- Keep your videos on your device. Don't tap "Send my highlights to host."

- Deny or revoke location, camera, or microphone permissions in your browser settings. Some features won't work without them.
- Clear this site's data in your browser to remove locally stored items. Leaving a lobby removes only the lobby session.

9. California privacy rights (CCPA/CPRA)

If you are a California resident, the California Consumer Privacy Act, as amended by the California Privacy Rights Act ("**CCPA**"), may give you rights over your personal information. We aim to respect these rights even where the law may not strictly apply to a small, free project like ours.

Categories of personal information we handle (past 12 months):

- **identifiers**: display name, Instagram handle, IP address, and session token;
- **geolocation data**: **precise geolocation**, which is "sensitive personal information" under the CCPA;
- **audio, electronic, and visual information**: the optional camera snapshot and optional highlight cuts; and
- **internet or network activity**: server logs and referral visits.

Sources: you and your device. **Purpose:** to provide the Game, as described in section 4. **Disclosed to:** other players in your lobby and our service providers, as described in section 5.

Sensitive personal information. We use precise geolocation and camera images only to provide the Game features you request. We do not use them to infer characteristics about you. Because of this, the CCPA right to limit the use of sensitive personal information does not currently apply. If that ever changes, we will update this policy and offer a way to limit.

Your rights may include the right to:

- **know or access** the personal information we have about you;
- **delete** it;
- **correct** it;
- **opt out of the sale or sharing** of it (we don't sell or share it);
- **limit** the use of sensitive personal information; and
- **not be discriminated against** for exercising these rights.

How to make a request: email [CONTACT EMAIL] with "California privacy request" in the subject. You may also use an authorized agent. Because we have no accounts and delete game data at the end of each round or lobby, we usually hold **no personal information that we can link to you** after your game ends. We may ask for details, such as your display name, lobby code, and the approximate date and time, to look for anything that remains, for example in server logs. We will respond within the time the law requires (generally 45 days).

Global Privacy Control / Do Not Track. We don't sell or share personal information or track you across sites, so there is currently nothing for these signals to opt you out of. If we add advertising, we will honor Global Privacy Control signals as required by law.

Retention: see section 7.

10. Children

The Game is intended **only for people 18 and older**. See our Terms of Service for why. We do not knowingly collect personal information from anyone under 18, and certainly not from children under 13, in line with the U.S. Children's Online Privacy Protection Act (COPPA). If you believe a child has used the Game, contact us at [CONTACT EMAIL] and we will delete any information we can identify. Because game data is held only in memory, it is usually already gone.

11. Future features: payments, ads, and third parties

The Game currently has **no payments and no ads**. We may later add:

- **Optional cosmetic purchases** processed by **Stripe**. Stripe would collect your payment details under its own privacy policy, and we would not see your full card number.
- **Ads, including optional "rewarded" ads,** from providers such as **Google**. Ad providers may use cookies, device identifiers, or similar technology, and may collect information such as your IP address and ad interactions. In some cases that is used for personalized advertising.
- **Accounts, analytics, or a database** to save progress or purchases.

Before we launch any of these features, we will update this Privacy Policy to describe exactly what is collected and by whom, and to explain your choices. If we ever "sell" or "share" personal information as California defines those terms, we will add a **"Do Not Sell or Share My Personal Information"** link, along with any consent prompts the law requires.

12. Security

We limit what we collect and keep it only in memory, and that is our main protection. The Game is served over HTTPS. Hiders' coordinates are sent to hunters only at ping time. However, no system is perfectly secure. Anyone with a lobby code or link can join that lobby, so share codes only with people you intend to play with.

13. International users

The Game is operated from, and hosted in, the United States. If you use it from elsewhere, your information will be processed in the United States.

14. Changes to this policy

We may update this policy. When we do, we will change the "Last updated" date. If a change is material, especially one that adds new kinds of data collection, we will give notice in the Game before the change applies.

15. Contact

Murray Nguyen (Last Ping) Email: **[CONTACT EMAIL, e.g. privacy@yourdomain.com]**
Instagram: @mmmmmray California, United States